

ORDER SHEET**IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT**

Case No:

Crl.Misc. No.8733-B/2013

Mst.Kiran Bibi

Versus The State & another.

S.No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties of counsel, where necessary.
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13.08.2013. Khawaja Owais Mushtaq, Advocate with petitioner.
Ms.Rabbiya Bajwa, Advocate for the complainant.
Ch.Muhammad Jehangir, DPG with Nisar Ahmed, SI.

The petitioner, Mst.Kiran Bibi seeks her pre-arrest bail in case FIR. No.295, dated 13.06.2013, registered under Section 3/4/6 of Punjab Prohibition of Money Lending Act, 2007, at Police Station, Hajipura, District, Sialkot.

2. As per FIR, the petitioner is the accused of having committed the offence of running a business of private money lending and charged exorbitant rate of interest on the said amount.

3. The learned counsel for the petitioner has contended that there is nothing on record to show that the petitioner is carrying out business of private money lending as alleged by the prosecution; further states that the petitioner was declared guilty on the basis of two pieces of paper which were not signed or written by her; malafide of the complainant is apparent as husband of the complainant issued cheque amounting to Rs.1,17,000/- in favour of husband of the petitioner, namely, Shahbaz

amounting to Rs.1,17,000/- in favour of husband of the petitioner, namely, Shahbaz Ahmad which was dishonoured and petitioner's husband lodged criminal case against husband of the complainant vide F.I.R. No. 197 dated 25.06.2013, offence under section 489-F PPC, registered at Police Station, Rangpura, District, Sialkot.

4. The learned law officer assisted by the learned counsel for the complainant stated that several receipts were seized, issued by the petitioner-accused to the complainant which shows that petitioner is engaged in money lending business and she is charging exorbitant rate of interest on the said amount. Further contended that the petitioner is not entitled to the concession of pre-arrest bail.

5. After having heard the learned counsel for the parties and perusing the record, it is observed that this is a fit case where the extra ordinary jurisdiction needs to be exercised. The crucial question, however, is whether there exists a prima facie case against the petitioner with respect to the offence of money lending punishable under Section 4 of the Punjab Prohibition of Private Money Lending Act, 2007. In this regard the crucial aspect would be that whether the petitioner was carrying on

business of money lending and whether the petitioner lend said amount to the complainant or not.

6. Offence punishable under Section 4 of the said Act has been defined in Section 3 of the Punjab Prohibition of Private Money Lending Act, 2007, which reads as under:-

Prohibition of Private Money Lending.

"No person, individually or collectively, shall engage himself in private money lending in the Province of Punjab".

7. The term "Private Money Lender" and "Interest" have been defined in Section 2 (b) & (c) are as follow:-

(b) "Private Money Lender" means a person who lends money on interest but does not include any corporation incorporated by the Federal or Provincial Government as a bank or a finance corporation or a cooperative society; and

(c) "Interest" means and include the return to be made over and above what was actually lent whether the same is charged or sought to be recovered specifically by way of interest or otherwise".

8. In the instant case, the complainant in proof of lending money and charging exorbitant rate of interest, provided only two pieces of papers which were secured through recovery memo by the investigating officer. The alleged pieces of papers are photocopies of accounts

written on diary pages, not signed by the petitioner and same are not in shape of receipt to which counsel for the complainant as well as law officer emphasized that the same are receipts. In the Black's Law Dictionary the word "receipt" is described as under:-

"Written acknowledgment of the receipt of money, or delivery of a thing of value, without containing any affirmative obligation upon either party to it; a mere admission of a fact, in writing. And, being a mere acknowledgment of payment, is subject to parol explanation or contradiction".

"A writing which acknowledges taking or receiving either money or goods which have been paid or have been delivered".

9. *Prima facie*, there is nothing on record to show that the petitioner is carrying out the business of private money lending and during investigation, the complainant had badly failed to prove that the petitioner is involved in money lending and she charged exorbitant rate of interest on the lend amount from the complainant. At present, no proof is available with the prosecution to connect the petitioner with the commission of alleged offence except two pieces of photocopy of papers and the same has no value in the eyes of law because this type of evidence can easily be prepared by any one. The intended arrest of the petitioner appears to be a malafide on the part of the

complainant to falsely implicate her in the case and put pressure upon her husband to withdraw his claim and the case registered against complainant's husband. The investigating officer declared guilty to the petitioner on the basis of photocopy of two pieces of papers, which are not sufficient proof to send the petitioner behind the bars, as the complainant had also taken divergent pleas in her application as well as in F.I.R. regarding stamp paper and cheque and same were not substantiated by her by providing convincing evidence rather it is yet to be seen by the trial court after recording of evidence that whether said document i.e. stamp paper as well as cheque were handed over to the petitioner or not. Keeping in view the facts and circumstances of the case, involvement of the petitioner can only be determined by the learned trial court after recording of evidence and at this stage, the guilt of the petitioner requires further probe and inquiry within the meaning of Section 497 (2) Cr.P.C. The investigation is complete and she is no more required for further investigation and sending the petitioner behind the bars would be a futile exercise.

10. For the foregoing reasons, the application is accepted and ad-interim pre-arrest bail already allowed to the petitioner is *confirmed* subject to her furnishing fresh bail bonds ~~to the~~ sum of Rs.1,00,000/-with one

surety in the like amount to the satisfaction of the learned trial court.

(Aalia Neelum)
Judge

Approved for reporting.

Judge

A.S.Khan.